

HOUSE BILL 142

By McCalmon

AN ACT to amend Tennessee Code Annotated, Title 57,
relative to alcoholic beverages.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 57, Chapter 3, Part 2, is amended by adding the following new section:

(a) Notwithstanding another law to the contrary, a winery licensed under § 57-3-207 and a manufacturer licensed under § 57-3-202 operating on overlapping premises may designate an area of the entities' respective premises that overlap each other for purposes of offering product tastings and making retail sales for consumption on or off of such premises if:

(1) The premises of the winery as defined in § 57-3-207(f)(3) and the premises of the manufacturer as defined in § 57-3-202(i)(4)(B):

(A) Are contiguous; and

(B) Are located on the same deeded property;

(2) The licensee shares a common ownership of at least fifty-one percent (51%) in both the winery and manufacturer; and

(3) All alcoholic beverages and wine sold by the winery and manufacturer within such overlapping premises are manufactured or produced on-site at the same deeded property by either the winery or manufacturer sharing the overlapping premises.

(b) For purposes of this section, "overlapping premises" does not include the bonded premises of the winery or the manufacturer.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.